

# Exercise Class 1: The Pros and Cons of a Central Political Authority

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*Political & Economic Thought — Master Notes · by Jakob V. Stangel*

**Readings:** Cicero, *De Re Publica / On the Commonwealth* (54–51 BC), **Book 1** (extract) · Hobbes, *Leviathan* (1651), **Part 2 "Of Commonwealth,"** chs 17–20 (pp. 111–132) *Supplementary (in the class folder):* Machiavelli, *The Prince* (1513), **chs 9 & 19.**

**Purpose of the exercise class (lecturer's note).** Exercise classes dive into the **primary sources** and discuss the thinkers' own arguments. This first one weighs a single question from two opposite directions: **is a strong central authority the solution to disorder, or the threat to freedom?** Cicero and Hobbes give the two classic answers — **balance power** vs **concentrate power** — and they let us practise every discussion question the lecturer set (purpose of government, good government, stability, war, the social contract, legitimising dictatorship, and the *method* differences between the ancients and the moderns).

★ **The heart of the class — one question, two opposite answers:**

- **Cicero (the ancient answer):** a central authority is *necessary but dangerous* — every **simple** form of rule (one/few/many) decays into its corrupt twin, so the cure is to **divide and balance** power in a **mixed constitution** (the Roman model). Authority is legitimate only when it serves the **common good** and rests on **justice + shared rights**.
- **Hobbes (the modern answer):** a central authority must be *absolute and undivided* — divide it and you slide back into the **war of all against all**. Subjects **covenant** to authorise one **sovereign** who is *not* a party to the deal; "a kingdom divided in itself cannot stand."
- **The clash in one line:** Cicero fears **concentrated** power (→ balance it); Hobbes fears **divided** power (→ unify it). Same problem — order vs tyranny — opposite prescriptions.

**The red thread.** For every text ask the two exam questions: (1) **What is government for?** (the *purpose* / end) and (2) **How should power be arranged to serve that end without destroying liberty?** Cicero answers "for the common good, arranged as a *balance*"; Hobbes answers "for peace/security, arranged as *one undivided will*."

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## Cicero — *De Re Publica / On the Commonwealth* (Book 1)

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**Book:** Marcus Tullius Cicero, *De Re Publica (On the Commonwealth)*, 54–51 BC, **Book 1** (extract, §§ XXV–XLV). Written as a **dialogue**; the main speaker is **Scipio Aemilianus** ("Africanus"), with Laelius, Philus and others.

## Reading résumé

Cicero (106–43 BC) writes at the **end of the Roman Republic**, as it slides toward civil war and one-man rule. In the extract, Scipio defines what a **commonwealth** (*res publica*) is, classifies the **three simple forms of government**, shows how each **decays into a corrupt twin**, and argues that the **best constitution is the mixed one** — a balance of monarchy, aristocracy and democracy, i.e. the Roman Republic itself. The text is the **Roman upgrade of Aristotle/Polybius**: it keeps the ancient "in whose interest?" test but adds a **theory of constitutional cycles** and a strong plea for **balance, stability, and equal rights under law**.

★ **The heart of the reading:** a commonwealth is the *people's property* (*res publica* = "the public thing"), held together by **justice and shared interest**. Each of the three **pure** forms is tolerable but **unstable** — it has a "slippery slope" into its corrupt version, and power cycles endlessly (king → tyrant → aristocracy → oligarchy → democracy → mob → tyrant...). The only **stable, lasting** form is the **mixed constitution** that blends all three so no part can capture the state.

**The red thread.** Cicero's whole case is a **stability argument**: pure forms *swing*, the mixed form *holds*. Read every part as answering "*which arrangement of authority lasts without turning into tyranny?*"

## Key concepts / "modes" to use

- ***Res publica*** — the commonwealth as the "**property of the people**" (*res populi*); a people = not any crowd but a multitude **united by agreement on justice and common interest**.
- **The three simple constitutions** — **monarchy** (rule of one), **aristocracy** (rule of the best few), **democracy** (rule of the many) — each *tolerable* if it serves the common good.
- **Their corrupt twins** — **tyranny** · **oligarchy (faction)** · **mob-rule (mob/"license")** — the "slippery slope" of each pure form.
- **Anacyclosis** — the **cycle/revolution of constitutions** (Polybius' idea): forms decay and succeed one another in a loop.
- **The mixed constitution** (*constitutio mixta*) — a balanced blend of all three → **stability + equality + liberty**; Cicero's answer, modelled on Rome.
- **Liberty, equality of rights, and law** — "a republic is an association of rights"; law is "the bond of civil society."

## Section-by-section main points

### What is a commonwealth? — *res publica* as the people's property

**Core:** a commonwealth is **not just any group of people** — it is a multitude "**bound together by the compact of justice and the communication of utility**." Take away shared justice/interest and it stops being a commonwealth at all.

- **Origin of the state:** *not* mainly human **weakness** (contrast the later Hobbesian fear-story) but a natural "**spirit of congregation**" — humans are naturally social and "seek society" even when they don't strictly need help. (*In plain terms: we band together because it is our nature, not only because we're scared.*)

- **Every association needs an authority to last:** "every commonwealth... must be regulated by a certain **authority**, in order to be permanent." That authority can sit in **one** (→ *kingdom*), **a few** (→ *aristocracy*), or **all** (→ *democracy*).
- **The legitimacy test (from Aristotle):** as long as the "**tie of social affection**" (the bond of common interest) holds, each of the three forms is "**tolerable**" — none is perfect, but one may be accidentally better than another.

## | The three simple forms — each tolerable, each flawed

**Core:** Cicero grades the three pure forms and finds each has a **built-in defect** even at its best.

- **Monarchy:** the other citizens are **shut out of public counsel and law** (too little participation).
- **Aristocracy:** the **multitude has too little liberty** — no share in deliberation or power.
- **Democracy:** even "just and moderate" democracy has a defect — its "**equality is itself inequitable**," because it **recognises no gradations of rank/merit** (levelling).
- **The examples he pairs (good vs corrupt):** the wise **King Cyrus** vs the monstrous tyrant **Phalaris**; the well-governed aristocracy of **Marseilles (Massilia)** vs the **Thirty Tyrants** of Athens; a moderate democracy vs the **mob** that "ruined" Athens once it abolished the Areopagus.

## | The cycle of constitutions (*anacyclosis*) — why pure forms don't last

**Core:** each pure form has "a **precipitous and slippery passage down to some proximate abuse**" — so constitutions **revolve** in a cycle, and no simple form is held for long.

- **The slippery slope of each form:** monarchy → **tyranny**; aristocracy → **oligarchy/faction**; democracy → **mob-rule/license**.
- **The loop (Cicero, echoing Plato & Polybius):** "*power is like the ball which is flung from hand to hand: it passes from kings to tyrants, from tyrants to the aristocracy, from them to democracy, and from these back again to tyrants and to factions.*" → the same kind of government "*is seldom long maintained.*"
- **The danger he dwells on — excessive liberty breeds tyranny.** He quotes **Plato** at length: when the people drink "not... tempered liberty, but unmitigated **license**," authority collapses everywhere (fathers fear sons, teachers flatter pupils, even "dogs, horses and asses" run wild) — and *out of this extreme liberty springs the harshest slavery: tyranny*. "**Excessive liberty... soon brings the people... to an excessive servitude.**" (*This is the exact worry Hobbes will weaponise for absolutism.*)

## | ★ The mixed constitution — Cicero's answer

**Core:** the **best** constitution is a **fourth kind** — a **mixed and balanced** blend of monarchy, aristocracy and democracy, "*composed of the three particular forms.*" It is best because it is **stable**: no single part can decay into its corrupt twin without being checked by the others.

- **The design:** "*I wish to establish in a commonwealth a **royal and pre-eminent chief** [monarchic element]. Another portion of power should be deposited in the hands of the **aristocracy** [the Senate], and certain things should be reserved to the **judgment and wish of the multitude** [the assemblies].*" → this is the **Roman Republic** (consuls + Senate + tribunes/assemblies).
- **Two virtues it delivers:** ① **great equality** ("without which men cannot long maintain their freedom") and ② **great stability** — "the particular separate and isolated forms easily fall into their

contraries" (king→despot, aristocracy→faction, democracy→mob), but the mixed form can only be overturned by "the greatest vices in public men."

- **Cicero's second-best:** if forced to pick a **single** pure form, he prefers **monarchy** ("the royal one") — the king is like a **father** watching over citizens "as over his children." But even the best monarchy "presents an inherent and invincible tendency to revolution," so the **mixed** constitution still wins.
- **The three appeals (why each form is attractive):** *"the kings attract us by affection, the nobles by talent, the people by liberty."* The mixed constitution captures **all three** at once.

## Liberty, equal rights, and law

**Core:** a genuine commonwealth requires **liberty**, and liberty requires a rough **equality of legal rights** — "a republic is an association of rights."

- **Liberty:** "in no other constitution than that in which the people exercise sovereign power has **liberty** any sure abode" — but Cicero means *ordered* liberty within law, not license.
- **Equality of rights, not of fortune:** he concedes fortunes and talents can't be made equal, **"but rights, at least, should be equal among those who are citizens of the same republic."**
- **Law as the bond:** *"since the law is the bond of civil society, and the justice of the law equal, by what rule can the association of citizens be held together, if the condition of the citizens be not equal?"* → law + equal rights = the glue of the res publica.

## Cases & examples

Read each as a worked case of the "good form vs its corrupt twin" test (and, for the cycle, as a station on the loop).

- **Cyrus vs Phalaris.** The Persian king **Cyrus** is Cicero's model of the *just, wise* monarch; **Phalaris** of Akragas (who roasted victims in a bronze bull) is the model tyrant. → *Illustrates: monarchy's "slippery slope" — the very same one-man power that is best under Cyrus becomes worst under Phalaris.*
- **Marseilles (Massilia) vs the Thirty Tyrants.** **Marseilles**, a Greek colony and Roman client, was governed justly by "elected magistrates of the highest rank" — Cicero's model *good* aristocracy; Athens' **Thirty Tyrants** (404 BC) are the corrupt **oligarchy/faction**. → *Illustrates: aristocracy vs oligarchy — rule of the best few vs rule of a self-serving clique.*
- **Athens' democracy → mob.** When Athens "demolished their **Areopagus**" and ran everything by direct decree, the state "was no longer able to retain its original fair appearance"; unchecked license "inflamed the fury of the multitude." → *Illustrates: democracy's decay into mob-rule/license — the step Plato says ends in tyranny (**Pisistratus**, the popular "protector" who becomes a tyrant).*
- **Rome (the Republic) — the mixed constitution in the flesh.** Consuls (monarchic), Senate (aristocratic), tribunes/assemblies (democratic). → *Illustrates: Cicero's whole thesis — Rome's balance is why it lasted where pure Greek forms swung and fell.*

## Key terms

| Term                           | Meaning                                                                                                                      |
|--------------------------------|------------------------------------------------------------------------------------------------------------------------------|
| <i>Res publica</i>             | The commonwealth — the " <b>property of the people</b> " ( <i>res populi</i> ); a people united by justice + common interest |
| Mixed constitution             | A balanced blend of monarchy + aristocracy + democracy → stability, equality, liberty (the Roman model)                      |
| <i>Anacyclosis</i>             | The <b>cycle/revolution</b> of constitutions — each decays into its corrupt twin, in a repeating loop                        |
| Tyranny / oligarchy / mob-rule | The corrupt twins of monarchy / aristocracy / democracy                                                                      |
| Equality of rights             | Fortunes/talents can't be equalised, but <b>legal rights</b> must be — "a republic is an association of rights"              |
| License vs liberty             | <i>Ordered</i> liberty under law, vs unrestrained "license" that breeds servitude/tyranny                                    |

## Exam pointers

- Define *res publica* precisely (the *people's* property; a people bound by justice + shared interest) and contrast it with a mere crowd.
- Run the cycle of constitutions end-to-end (king→tyrant→aristocracy→oligarchy→democracy→mob→tyrant) and explain *why* each form slides.
- State why the mixed constitution is best — the **stability** argument — and map it onto Rome (consuls/Senate/assemblies).
- Use Cicero's liberty-becomes-servitude point as the bridge to **Hobbes** (both fear disorder — but Cicero cures it by *balance*, Hobbes by *concentration*).

**Bridge.** Cicero is the **mature ancient answer** — he keeps Aristotle's "in whose interest?" test (Module 1) and Polybius' cycle, and lands on the politeia/mixed constitution for the *same* stability reason Aristotle gave. Hobbes will accept Cicero's **diagnosis** (disorder is the enemy) but flip the **prescription** from *balance* to *undivided sovereignty*.

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## Hobbes — *Leviathan*, Part 2 "Of Commonwealth" (chs 17–20, pp. 111–132)

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**Book:** Thomas Hobbes, *Leviathan* (1651), **Part 2 "Of Commonwealth,"** chapters 17–20 (pp. 111–132 in the set edition). (*The state-of-nature groundwork — chs 13–15 — is covered in Module 2; this extract is the **payoff**: how the commonwealth is generated and what powers the sovereign holds.*)

## Reading résumé

This is the **constructive half** of *Leviathan*: having shown (chs 13–15) that the state of nature is a **war of all against all** that even the laws of nature can't fix, Hobbes now **builds the state**. Ch. 17 gives the **cause, generation and definition** of the commonwealth (the covenant that creates the "mortal god"); ch. 18 deduces the **rights of the sovereign** (about a dozen, all **indivisible and inalienable**); ch. 19 argues there are only **three forms** and that **monarchy is best**; ch. 20 shows a commonwealth **by conquest** ("acquisition") has the *same* rights as one by consent.

★ **The heart of the extract:** covenants are "**but words**" without "a common power to keep them all in awe" — so men **authorise one sovereign** and pile *all* their strength on him. Because the sovereign is **not a party** to the covenant, and because a "**kingdom divided in itself cannot stand**," his power must be **absolute, undivided and unaccountable** — anything less is a lapse back into war. The alternative to Leviathan is not liberty; it is **civil war**.

**The red thread.** Every one of the sovereign's rights is *deduced* from a single premise: **the point of the state is peace, and peace requires one undivided power**. For each right ask: "*how would dividing or denying this power let the war back in?*"

## Key concepts / "modes" to use

- "**Covenants without the sword are but breath**" — laws/agreements need an **enforcer** or they're worthless.
- **Why men ≠ bees & ants** — six reasons only *humans* need a **coercive** common power.
- **The generation of the commonwealth** — the covenant formula ("*I authorise and give up my right of governing myself...*").
- **Sovereign by institution vs acquisition** — created by mutual **consent** vs by **conquest/fear**; same rights.
- **The rights/marks of sovereignty** — ~12 powers, **indivisible + incommunicable + inalienable**.
- **Iniquity vs injury** — the sovereign may act *wickedly* but can never do a subject a *legal wrong*.
- **Only three forms; monarchy is best** — and mixed/limited "sovereignty" is a contradiction in terms.

## Section-by-section main points

### Why the laws of nature aren't enough — "covenants without the sword are but breath"

**Core:** the **end (purpose)** of the commonwealth is the subjects' **own preservation** and "**a more contented life**" — escaping the war that follows from the natural passions when "there is no visible power to keep them in awe."

- The **laws of nature** (justice, equity, mercy, *doing to others as we would be done to*) run **against** our natural passions (pride, revenge, partiality). So on their own they don't bind in practice.
- The killer line: "**covenants, without the sword, are but words, and of no strength to secure a man at all**." Without an enforcing power, everyone rationally keeps their guard up → back to war.

- **Not enough:** a *small* group, or a *large but leaderless* multitude, or a union *for a limited time* — none gives lasting security. Only a **standing common power** does.

## Why men are not like bees and ants — six reasons a **coercive** power is needed

**Core:** Aristotle called bees and ants "political creatures" that cooperate **naturally**; Hobbes lists **six** reasons humans can't — so human agreement must be **artificial** (a covenant) and backed by **coercion**.

| # | Bees & ants...                                     | ...but men                                                                                                                   |
|---|----------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------|
| 1 | don't <b>compete for honour/dignity</b>            | men do → <b>envy, hatred, war</b>                                                                                            |
| 2 | private good = common good                         | in men <b>private ≠ common</b> — we relish only what makes us "eminent"                                                      |
| 3 | see no fault in the common business                | many men " <b>think themselves wiser</b> " → strive to reform/innovate → faction                                             |
| 4 | can't <b>misrepresent</b> good and evil            | men have the " <b>art of words</b> " → can call good evil and evil good, unsettling the peace                                |
| 5 | can't distinguish <b>injury</b> from <b>damage</b> | men are "then most troublesome when... most at ease" — they resent <i>authority</i>                                          |
| 6 | agree <b>naturally</b>                             | men's agreement is " <b>by covenant only, which is artificial</b> " → needs a common power to make it "constant and lasting" |

## ★ The generation & definition of the commonwealth — the covenant

**Core:** the **only** way to erect a common power is for every man to **hand all his strength and will to one man or assembly**, by a covenant **of every man with every man**.

- **The covenant formula (learn it):** "*I authorise and give up my right of governing myself, to this man, or to this assembly of men, on this condition, that thou give up thy right to him, and authorise all his actions in like manner.*" This done, the multitude united in one person is a **COMMONWEALTH** — "*in Latin CIVITAS.*"
- **The definition of the commonwealth:** "*One person, of whose acts a great multitude, by mutual covenants one with another, have made themselves every one the author, to the end he may use the strength and means of them all, as he shall think expedient, for their peace and common defence.*"
- **The "mortal god":** this is "the generation of that great **LEVIATHAN**, or rather... that **Mortal God**, to which we owe, under the *Immortal God*, our peace and defence."
- **Sovereign vs subject:** he that carries the person is the **SOVEREIGN** (has *sovereign power*); everyone else is his **SUBJECT**.
- **Two routes to sovereignty:** by **institution** (men *voluntarily* agree among themselves — ch. 18) or by **acquisition** (**natural force / conquest** — ch. 20). Both produce the *same* sovereign power.

## ★ The rights of the sovereign — the ~12 "marks," indivisible and inalienable (ch. 18)

**Core:** from the covenant Hobbes *deduces* the powers of the sovereign. They are **incommunicable and inseparable** — you cannot split them off without dissolving the state. The subject is **author** of everything the sovereign does, which is why the sovereign can never wrong him.

| #  | Right of the sovereign                                                  | Why (deduced from the covenant)                                                                                                                                                               |
|----|-------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1  | <b>Subjects can't change the form of government</b>                     | They already covenanted to own the sovereign's acts; to depose him is to break faith → injustice; there is " <b>no covenant with God</b> " except through the sovereign (God's "lieutenant"). |
| 2  | <b>Sovereign power cannot be forfeited</b>                              | The sovereign made <b>no covenant with the subjects</b> beforehand (he's the beneficiary, not a party), so he can't "breach" it.                                                              |
| 3  | <b>No one can justly protest the institution</b>                        | The majority's choice binds all; a dissenter must submit "or else be left in the condition of war he was in before."                                                                          |
| 4  | <b>The sovereign's acts cannot be justly accused</b> by a subject       | The subject <b>authorised</b> them, so to complain is to complain "of that whereof he himself is author."                                                                                     |
| 5  | <b>The sovereign cannot justly be punished/put to death</b> by subjects | Same reason — to punish him is to punish yourself for your own act.                                                                                                                           |
| 6  | <b>Judge of doctrines &amp; opinions</b> (censorship)                   | "The actions of men proceed from their opinions" → to keep peace he governs what is taught/published.                                                                                         |
| 7  | <b>Legislative power — makes the rules of "propriety"</b>               | He defines <i>meum</i> and <i>tuum</i> (mine/yours = property), and what is "good, evil, lawful, unlawful" — the civil laws.                                                                  |
| 8  | <b>Judicial power (right of judicature)</b>                             | Hears and decides all controversies; without it the laws are "in vain."                                                                                                                       |
| 9  | <b>Right of making war &amp; peace;</b> commands the <b>militia</b>     | Judges when war serves the public good, levies forces and money; whoever holds the sword is <i>generalissimo</i> .                                                                            |
| 10 | <b>Appoints all counsellors, ministers, magistrates, officers</b>       | He is charged with peace/defence, so he chooses the means.                                                                                                                                    |
| 11 | <b>Rewards and punishes</b> (arbitrarily where no law)                  | To encourage service and deter disservice.                                                                                                                                                    |
| 12 | <b>Confers honour &amp; order</b> (titles, rank, precedence)            | He is "the fountain of honour"; dignities are "his creatures."                                                                                                                                |

- These rights are *indivisible*. "A kingdom divided in itself cannot stand." Hobbes reads the **English Civil War** as caused *exactly* by dividing sovereignty between "the King, the Lords, and the House of Commons" — split the power and "the people had never been divided and fallen into this civil war." (*This is his living example — divided sovereignty = civil war.*)

- **They are *inalienable*.** Even if the sovereign *seems* to grant a right away, the grant is **void** if it contradicts his retained sovereignty ("all is restored, as inseparably annexed").
- **Iniquity vs injury (crucial).** The sovereign, being a man, *can* do wrong in God's eyes (**iniquity**) — but he can never do a subject an **injury** (a *legal* wrong), because he makes the law and the subject authorised him. *In plain terms: you can call the sovereign wicked, but you can never say he acted illegally against you.*
- **The objection & Hobbes's reply (ch. 18 §20).** *Objection:* isn't the subject's condition "very miserable" under such unlimited power? *Reply:* the inconveniences of **any** government are "scarce sensible" compared with "**the miseries and horrible calamities that accompany a civil war,**" or the "dissolute condition of masterless men." "**Sovereign power [is] not so hurtful as the want of it.**" (*The whole absolutist case rests here: the real alternative to Leviathan is not freedom but anarchy.*)

## Only three forms — and why monarchy is best (ch. 19)

**Core:** since the representative must be **one, some, or all**, there are exactly **three** commonwealths — **monarchy, aristocracy, democracy**. "Tyranny," "oligarchy" and "anarchy" are **not other forms** — just the same three "misliked" by those who dislike them.

- **Mixed/limited "sovereignty" is a contradiction.** A "limited" king "is not superior to... them that have the power to limit him," so he is **not sovereign** — the real sovereignty sits with whoever limits him (e.g. Sparta's **Ephori**). This is Hobbes's **direct rebuttal of Cicero's mixed constitution**: to divide sovereignty is to *not have* a sovereign.
- **Why monarchy is best (his comparison):** ① in a monarch the **private interest = the public** ("no king can be rich... whose subjects are poor"); ② a monarch can take **secret counsel** from anyone, an assembly can't; ③ a monarch's resolutions are subject only to the inconstancy of *human nature*, an assembly adds the inconstancy of *numbers*; ④ a monarch **cannot disagree with himself** — an assembly can, to the point of **civil war**; ⑤ the one real inconvenience (a monarch may deprive a subject to enrich a favourite) also afflicts assemblies (whose favourites are many more).
- **Succession & "artificial eternity."** Because the commonwealth is meant to last, the **present sovereign** must control the **succession** ("no perfect form of government, where the disposing of the succession is not in the present sovereign") — by express words, testament, or custom/natural affection. This is the state's "**artificial eternity**."

## Commonwealth by acquisition — conquest gives the *same* rights (ch. 20)

**Core:** a commonwealth "**by acquisition**" is one where sovereignty is got **by force** (conquest, or a parent's power over children). It differs from a commonwealth by institution **only** in the *motive* — in institution men fear *one another*; in acquisition they fear *the one they submit to*.

- **Fear doesn't invalidate it.** In *both* cases men act "for fear of death," yet the covenant holds — "in both cases they do it for fear." (Recall Module 2: "all contracts are made through fear.")
- **The rights are identical.** The sovereign by acquisition has *all* the same rights (legislator, judge, war/peace, honour, etc.) as the sovereign by institution — "the rights and consequences of sovereignty are the same in both."

## Cases & examples

- **The English Civil War (1642–51).** Hobbes's own moment — and his central case for **indivisibility**: the war came, he says, from dividing sovereign powers among **King, Lords, and Commons**. → *Illustrates: "a kingdom divided in itself cannot stand" — divided sovereignty is the road to civil war.*
- **Bees and ants (vs Aristotle).** Aristotle's "political creatures" cooperate by nature; Hobbes uses them as a **foil** — the six differences prove human cooperation must be *artificial* and *coerced*. → *Illustrates: why a coercive sovereign is necessary for humans specifically.*
- **Sparta's Ephori.** A "limited king" whose army-command was a mere privilege — real sovereignty lay in the **Ephori**. → *Illustrates: there is no such thing as limited/mixed sovereignty; someone always holds the whole.*

## Key terms

| Term                                    | Meaning                                                                                                                                |
|-----------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------|
| Commonwealth ( <i>civitas</i> )         | "One person, of whose acts a great multitude... have made themselves every one the author," for peace & common defence                 |
| Covenant (generation of the state)      | Every man with every man: " <i>I authorise and give up my right of governing myself to this man... on condition thou do the same</i> " |
| Leviathan / "mortal god"                | The commonwealth as an artificial person owing our peace under the Immortal God                                                        |
| Sovereign by institution vs acquisition | Created by mutual <b>consent</b> vs by <b>conquest/force</b> — same rights                                                             |
| Rights/marks of sovereignty             | ~12 powers, <b>indivisible + incommunicable + inalienable</b> (legislator, judge, war/peace, censorship, honour...)                    |
| Iniquity vs injury                      | The sovereign can act <i>wickedly</i> (iniquity) but never <i>illegally</i> toward a subject (injury)                                  |
| "Kingdom divided cannot stand"          | Divided sovereignty → civil war → indivisibility of sovereign power                                                                    |

## Exam pointers

- Reproduce the covenant formula and the definition of the commonwealth exactly, and explain why the sovereign is **not a party** to it.
- List several rights of the sovereign and show each is **deduced** from "peace requires undivided power" — especially indivisibility (civil-war case).
- Explain iniquity vs injury and Hobbes's reply that "**sovereign power is not so hurtful as the want of it.**"
- Show why Hobbes says mixed/limited sovereignty is impossible — the **direct clash with Cicero**.

**Bridge.** Hobbes is the **modern answer** built on the same social-contract device as Grotius, but pushed to **absolutism** (Module 2). Where Cicero *balances* authority to stop tyranny, Hobbes *unifies* it to stop civil war — the two texts are the exercise class's whole debate.

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## Machiavelli — *The Prince*, chs 9 & 19 (supplementary — in the class folder)

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**Flagged for you:** the *Prince* excerpt sits in the Exercise Class 1 folder but is **not** on the listed reading line (Cicero + Hobbes). It's directly relevant to the discussion questions on **stability** and **legitimising one-man rule**, and Machiavelli is already the bridge figure in Module 2 and Module 3. Short treatment here — tell me if you want it expanded or dropped.

**Core:** Machiavelli's question is **not** "what is the best/just constitution?" (Cicero) but "how does a ruler *acquire and keep power*?" — the shift from *legitimacy* to *technique* that both Hobbes and modern political science inherit.

- **The civic principality (ch. 9):** a citizen can become prince by favour of **the people** or **the nobles**. Every city splits into two "humours": the people wish only **not to be oppressed**; the nobles wish **to oppress**. → A prince raised by the **people** is safer (their aim is "more honest," they're too numerous to fight, the worst they do is abandon him); one raised by the **nobles** is surrounded by "equals" he can't command. **Rule: a wise prince keeps the people on his side** — "it is necessary for a prince to possess the friendship of the people; otherwise he has no resource in adversity."
- **Avoiding hatred & contempt (ch. 19):** the prince's overriding aim is to **not be hated or despised** — hatred comes from seizing subjects' **property and women**; contempt from seeming "changeable, frivolous... timid." Keep the **people** satisfied and the **nobles** in check. His model: the **French parlement** — a "third judge" that curbs the nobles and protects the people **without the king taking the blame** ("princes should let unpopular duties devolve on others, and bestow favours themselves").
- **How it feeds the debate:** Machiavelli agrees with **Hobbes** that politics rests on a pessimistic, self-interested view of human nature and on **power, not virtue-talk** — but his prince still depends on **popular support**, a fragile balance closer to Cicero's worry about keeping the parts in equilibrium than to Hobbes's all-authorising covenant.

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## ★ Cicero vs Hobbes — the exercise class's payoff

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**Core:** both fear **disorder** and both want a **stable** state — but they disagree on **human nature** and on **how to arrange authority**, and that split drives opposite prescriptions.

|                         | Cicero (ancient)                                                        | Hobbes (modern)                                            |
|-------------------------|-------------------------------------------------------------------------|------------------------------------------------------------|
| Why do we form a state? | Natural <b>sociability</b> ("spirit of congregation") + common interest | <b>Fear</b> — to escape the "war of all against all"       |
| Purpose of government   | The <b>common good</b> ; justice + shared rights                        | <b>Peace &amp; security</b> (self-preservation)            |
| Human nature            | Social, capable of justice (but corruptible)                            | Self-interested, competitive, dangerous                    |
| How to arrange power    | <b>Divide &amp; balance</b> it — the <u><b>mixed constitution</b></u>   | <b>Unify</b> it — one <b>absolute, undivided sovereign</b> |
| Main fear               | <b>Concentrated</b> power → tyranny; and license → mob → tyrant         | <b>Divided</b> power → faction → <b>civil war</b>          |
| Legitimacy rests on     | Ruling in the <b>common interest</b> under law                          | The <b>covenant/authorisation</b> of the subjects          |
| Right of resistance     | Implied (a tyrant betrays the <u><i>res publica</i></u> )               | Almost none — to resist is to wrong yourself               |
| Model                   | The <b>Roman Republic</b>                                               | The <b>Leviathan</b> / "mortal god"                        |

Where they meet: both accept that **authority must exist** and that **unchecked liberty/license is dangerous** (Cicero's "license breeds servitude" is the seed Hobbes grows into absolutism). They split on the cure: **balance** (Cicero) vs **concentration** (Hobbes).

## ★ Reading questions — worked answers

Study answers to the **eight discussion questions** the lecturer set for Exercise Class 1. Each: a one-line **Answer**, then the two thinkers' positions.

### 1 • What is the purpose of government?

**Answer:** to secure the shared ends men can't secure alone — for **Cicero**, the **common good** (justice, liberty, the *res publica*); for **Hobbes**, **peace and self-preservation** (escape from the war of all against all).

- **Cicero:** government exists to serve the **people's common interest** under **justice and law**; authority that stops serving the common good loses legitimacy. → *res publica*.
- **Hobbes:** the "final cause" of the commonwealth is the subjects' **own preservation and a more contented life** — "getting themselves out from that miserable condition of war." → the end of commonwealth.

## 2 · What is good government?

**Answer:** Cicero — the **mixed/balanced constitution** that rules in the common interest and lasts; Hobbes — **undivided sovereignty** (ideally **monarchy**) that keeps the peace.

- **Cicero:** good = **stable + balanced + common-interest**; the mixed constitution (Rome) because pure forms decay. Bad = any form ruling for the rulers, and any form that swings on the cycle.
- **Hobbes:** good = **effective at keeping peace**, which means **undivided**; a divided or "mixed" sovereignty is a contradiction and a recipe for civil war. Best simple form = monarchy.

## 3 · How can one maintain stability in a government?

**Answer:** Cicero — by **balancing** the three elements so none decays; Hobbes — by **never dividing** sovereignty and by fixing the **succession**.

- **Cicero:** the mixed constitution is stable because each part checks the others' "slippery slope"; equality of **rights under law** is the social glue. Instability comes from letting one part dominate (or from **license** → mob → tyrant).
- **Hobbes:** stability = **indivisible power** ("a kingdom divided in itself cannot stand," English Civil War) + the sovereign controlling succession (the state's "artificial eternity"). Subjects' obedience must be near-unconditional.

## 4 · Is war legitimate?

**Answer:** Cicero — only a **just** war (defensive, for the commonwealth, waged lawfully); Hobbes — between states there is *no* law, so war is the natural condition, and the sovereign alone **judges** when to wage it.

- **Cicero** (the wider *De Officiis* tradition, consistent with *De Re Publica*): war is legitimate only for a **just cause, declared** properly, aimed at **peace** — the Roman "just war" idea. Internally, **civil war/faction** is the great evil the mixed constitution exists to prevent.
- **Hobbes:** in the **state of nature** (including *between* sovereign states) there is no common power, so no injustice — war is simply the default. Within a commonwealth, the right of war and peace belongs solely to the sovereign, who judges when it serves the public good. (Contrast Grotius, who insists even the *space between states* is law-governed.)

## 5 · What is a social contract?

**Answer:** an agreement that **creates political authority** out of a pre-political condition. Hobbes gives the classic version; Cicero has a *proto-contract* (agreement on justice) but not the modern device.

- **Hobbes:** the **covenant** — every man with every man — to **authorise one sovereign** and own his acts: "*I authorise and give up my right of governing myself...*" The sovereign is the **beneficiary, not a party**, so his power is unlimited. → the covenant.
- **Cicero:** the commonwealth rests on a "**compact of justice and communication of utility**" — a people is *defined* by agreement on justice/interest. This is a **normative bond**, not a Hobbesian power-transfer, and it *limits* rulers rather than empowering them. → res publica.

## 6 • Legitimising dictatorship / totalitarian rule?

**Answer:** Hobbes supplies the strongest philosophical case for **absolute** rule (though from *consent*, not for its own sake); Cicero is the classic **warning** against it (concentrated power → tyranny).

- **Hobbes:** the sovereign is **absolute, unaccountable, above the law he makes**; iniquity ≠ injury; resistance is (almost) never just; "**sovereign power is not so hurtful as the want of it.**" *But note:* his absolutism is **built from individuals' voluntary authorisation** and the powers belong to the **office/state**, not the ruler's whim — which is why the deck asks whether Hobbes is also the *first liberal*. → rights of the sovereign.
- **Cicero:** the whole cycle is a warning — even a good king (Cyrus) has an heir who may be a Phalaris; **excessive concentration** (like excessive license) ends in **tyranny**. Legitimacy requires ruling for the **common good under law**.
- **Machiavelli** (supplementary): the *technique* of holding one-man power — keep the **people** on side, avoid **hatred/contempt** — a **realist**, not a moral, legitimisation. → Machiavelli.

## 7 • The methods of Aristotle & Cicero vs Plato & Hobbes

**Answer:** Aristotle & Cicero = **empirical, comparative, "what works and lasts"** (observe real constitutions, seek the stable/mixed form). Plato & Hobbes = **deductive/ideal, "from first principles"** (derive the *right* order from a single foundation — the Good, or human nature as geometry).

- **Aristotle & Cicero (empirical/inductive):** classify **actual** constitutions, judge them by **whose interest** they serve, and recommend the **practicable, stable** one (the politeia / mixed constitution). Politics is the study of the *achievable* best, tuned to circumstances.
- **Plato & Hobbes (deductive/idealising):** build from a **single foundation** — Plato from **knowledge of the Good** (the kallipolis), Hobbes from **human nature "like geometry"** (axioms → theorems → the covenant). Both derive **one** right answer (philosopher-kings / the absolute sovereign) rather than surveying what exists. (*This is the Idealism vs empiricism axis from Module 1, now with Hobbes on Plato's methodological side even though his conclusion is worldly.*)

## 8 • Differences between Theory / Concepts / Ideology

**Answer:** Theory aims at (relative) **objectivity/explanation** (positive); **ideology** is openly **normative** — a programme for action; **concepts** are the **building-block terms** ("sovereignty," "res publica," "state of nature") that both theory and ideology use.

- **Theory:** a rigorous framework of concepts + logic aiming at some **objectivity** (positive, not strictly value-free). Hobbes *presents* Leviathan as a **science** of politics. → theory vs ideology.
  - **Ideology (Heywood):** a coherent set of ideas grounding **organised political action** — describes the world, pictures a "good society," and says how to get there. Reading Cicero/Hobbes as *justifications* (for the Republic, for absolutism) is reading them ideologically.
  - **Concepts:** the **units of meaning** you argue *with* — res publica, mixed constitution, sovereignty, covenant, iniquity/injury. Both theory and ideology are assembled out of concepts; the exam skill is **defining them precisely** and noticing when a concept smuggles in a norm (e.g. "liberty," "just").
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## ★ Fun facts & memorable details

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Sticky bits from Exercise Class 1 (Cicero & Hobbes).

### Cicero

- ***De Re Publica* was almost lost.** For centuries it survived only in fragments — a big chunk (incl. the famous "**Dream of Scipio**") was recovered in **1819** from a *palimpsest*: a manuscript scraped clean and overwritten with a text of **St Augustine** on the Psalms.
- Cicero's tyrant **Phalaris** roasted his victims inside a **hollow bronze bull** so their screams sounded like the bull "bellowing."
- "**A republic is an association of rights**" (*iuris societas*) — and *res publica* literally = "**the public thing**" / the people's property.
- Cicero was **murdered in 43 BC** in the proscriptions after Caesar's death; Antony had his **head and hands nailed up** on the Rostra in the Forum — the very platform from which he'd delivered his speeches.

### Hobbes

- "**Covenants, without the sword, are but words**" — five words that summarise his whole politics.
  - "**A kingdom divided in itself cannot stand**" — Hobbes borrows the Gospel line (Matthew 12) to argue for **indivisible sovereignty**, blaming exactly such division for the **English Civil War** he lived through.
  - The commonwealth is a "**mortal god**" — the frontispiece giant is literally **made of the tiny bodies of the subjects** who authorise him.
  - On the miseries of no-government: "**sovereign power [is] not so hurtful as the want of it**" — the entire absolutist case in one line.
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